

“ are the most sincere, would not be free from continual calumniation.” The Marginal annotator, upon the words “ to God and the King,” makes a query :—“ query “ also to the Parliament.” He makes no query : whether he is responsible also to the Common Pleas.—Such a query, indeed was never made, except by the present Plaintiff. But Lord *Coke* in what follows, clearly shews, that, by the account to the King, he means the King in Parliament : for he goes on to state, that Chief Justice *Weyland*, and Judge *Hengham*, accused of bribery and corruption, had their causes determined in Parliament ; and he cites the Case of the Judges of *Traylbaston*, in *Edward the Third's time*, which was examined before the King in Parliament, and not by force of any Commission ; and he says, that *Thorpe's Judgment*, who was drawn in Judgment before Commissioners, was held to be against law : and upon that he was pardoned ; and it is contained in the same record, that it shall not be drawn into precedent. Such, then, is the Case of *Floyd and Barker*. Such are the circumstances which Mr. *Perrin* has omitted to mention.—Their true bearing upon the present question, is for your Lordships to determine.

But I find, my Lords, a still older authority, in which the language of the Constitution is, that Parliament is the tribunal for such a complaint ; and that the King in Parliament is the proper reformer of the abuse.—It is thus entered in the *Parliamentary Roll* of the 1st year of King *Henry 4th*. “ The Commons pray, that the Lords, spiritual and temporal, nor the Justices, be not received hereafter for their excuse, to say, that they do not dare to say the law for doubt of death.” And it is answered : “ That the King holds all his Lords and Justices, for good, sufficient and loyal ; and that they will not give other Counsel or advice, but what is honest, and just, and profitable for him and the Realm ; and if any will complain, in especial, in time to come, the King will cause to reform and amend.” And therefore when Mr. *Perrin* asks, whether there is any wrong, for which the Constitution has provided no remedy I will say, that there are wrongs, which the law will not presume to be possible, and for which, for that reason, no remedy is pro-